

1.

CASE #	CASE NAME	HEARING NAME
CVRI2305590	JIYANI VS PATEL	MOTION TO CONSOLIDATE ON COMPLAINT FOR BUSINESS TORT/UNFAIR BUSINESS PRACTICE

Tentative Ruling:

Under C.C.P. §1048(a), “[w]hen actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” The determination of whether to consolidate two actions is a matter for the trial court’s discretion. (*Muller v. Robinson* (1959) 174 Cal.App.2d 511, 515. The purpose of consolidation is to enhance trial court efficiencies and consolidation should be granted to: (1) avoid repetitive trials of common issues; (2) avoid unnecessary costs and delays; and (3) avoid a substantial risk of inconsistent adjudications. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979.) As consolidation is discretionary, “it is possible that actions may be thoroughly ‘related’ in the sense of having common questions of law or fact, and still not be ‘consolidated,’ if the trial court, in the sound exercise of its discretion, chooses not to do so.” (*Askew v. Askew* (1994) 22 Cal.App.4th 942, 964.) And so “[w]hether separate actions shall be consolidated for trial is a matter within the discretion of the trial court and its decision will not be disturbed on appeal absent a clear showing of abuse of discretion.” (*Estate of Baker* (1982) 131 Cal.App.3d 471, 485.)

Movant is asking the Court to merge a three-year-old action concerning six WaBa Grill restaurants, owned through three corporations in which Mr. JiYani holds 47.5 percent, into a newer action, one with no trial date set yet, concerning an entirely different group of restaurants, owned through a different group of corporations, with different shareholders, in different proportions. The two corporate families share no entity, no property, no books, no bank account, and the parties, other than Mr. JIYANI and Mr. PATEL are different. The only commonality is that NISHANT PATEL and MUKUND JIYANI are participants in both, and that Mr. JIYANI has accused Mr. PATEL of comparable misconduct in each.

With the two matters remaining separate the Court finds that the two trials would not have repetitive common issues, would do little, if anything, to avoid unnecessary costs and delays; and would not avoid a risk of inconsistent adjudications. While the shareholders are similar, they involve different restaurants and claims. While Defendants contend credibility of the principals is the same, that is irrelevant for consolidation purposes. One is not res judicata as to the other. The Court see no basis for consolidation based on the facts presented in the motion.

Motion to consolidate the two matters is denied.